

CIRCUIT COURT OF ILLINOIS

_____ JUDICIAL CIRCUIT

_____ COUNTY

Petitioner's Name (person completing form)

☐ Independent

Name(s) of other protected parties

☐ Criminal

☐ Juvenile

Check if filing on behalf of:

(file stamp)

☐ a minor child, or ☐ an adult who because of
age, disability, health, or inaccessibility cannot
file the petition (list name(s) below)

vs.

Case # _____

Respondent's Name (person you want protection from)

(to be completed by Court)

If the Respondent is under age 18 and if remedy #4 is requested
the name(s) of minor ☐ parent(s) or ☐ legal guardian(s)

☐ Notice to School Board(s) if remedy #4 is requested

VERIFIED PETITION FOR CIVIL NO CONTACT ORDER

(Sexual Conduct and/or Penetration)

PETITIONER INFORMATION

Petitioner's

Address: _____
(Street/P.O. Box) (City) (State) (Zip Code)

☐ Disclosure of Petitioner's and/or protected party's address would risk further abuse. The address listed
above is Petitioner's and/or protected party's alternative address for service of notice.

Other protected persons (persons to be included in the Civil No Contact Order), in addition to the Petitioner are:

Name: _____

Address: _____
(Street/P.O. Box) (City) (State) (Zip Code)

Name: _____

Address: _____
(Street/P.O. Box) (City) (State) (Zip Code)

Form approved by the Conference of Chief Circuit
Judges. Effective December 6, 2024
Use required after January 1, 2025

RESPONDENT INFORMATION

(if known)

Name: _____ **DOB:** _____

Gender: _____ **Race:** _____ **Height:** _____ **Weight:** _____

Hair Color: _____ **Eye Color:** _____ **Social Security #: XXX-XX-** _____
(last 4 numbers)

Driver's License #: _____ **License Plate #:** _____

Other Numeric Identifier: _____ **Description:** _____
(number - optional) (e.g. passport #, military serial # or other)

☐ **Home Address:** _____
(Street/P.O. Box) (City) (State) (Zip)

Name of Workplace: _____ **Work Hours:** _____

☐ **Work Address:** _____
(Street/P.O. Box) (City) (State) (Zip)

Distinguishing Physical Features: _____
(tattoos, scars, etc.)

Respondent is incarcerated at: _____

☐ **Respondent's address is unknown. Service by publication is requested (Section 2-206 (a) of the Code of Civil Procedure). (Reasonable efforts to accomplish actual service must be shown by evidence or affidavit. (740 ILCS 22/208(c))**

Respondent may be

- ☐ considered armed and/or dangerous
- ☐ suicidal
- ☐ considered armed, dangerous and suicidal

I am requesting a Civil No Contact Order because on or about _____, at _____
(date)

_____ (location)
the following occurred: **(Be specific as to dates, events and locations)** _____

(additional pages may be added)

Venue is appropriate in this county because: ☐ the Petitioner resides here; ☐ the Respondent resides here; ☐ the alleged non-consensual sexual conduct or non-consensual sexual penetration occurred here (check all that apply).

REMEDIES SECTION (740 ILCS 22/213)

Pursuant to the Civil No Contact Order Act, the Petitioner seeks the following remedies:

1. ☐ That the Respondent be ordered to stay at least _____ feet away from the Petitioner and/or other protected persons. That Respondent be prohibited from entering or remaining at the Petitioner's and/or other protected persons':
☐ place of residence, located at _____

☐ place(s) of employment, located at _____

☐ school(s) and/or daycare, located at _____

☐ and any of the following specified places, when Petitioner and/or other protected persons are present: _____

2. ☐ That the Respondent refrain from contact with Petitioner and/or other protected persons in any way, directly, indirectly or through third parties, including, but not limited to, phone, written notes, mail, email, or fax.
3. ☐ That Respondent stay away from and be prohibited from taking, transferring, encumbering, concealing, damaging, or otherwise disposing of the Petitioner and/or other protected persons' real and/or personal property or animal(s).
4. ☐ That the Respondent be restrained from attending _____ school at _____ (address) attended by the Petitioner. (740 ILCS 22/213(b-6))
5. ☐ Other injunctive relief as follows:

WHEREFORE, Petitioner moves the Court to grant the relief requested in this petition.

VERIFICATION

UNDER THE PENALTIES OF PERJURY AS PROVIDED BY LAW PURSUANT TO SECTION 1-109 OF THE CODE OF CIVIL PROCEDURE, THE UNDERSIGNED CERTIFIES THAT THE STATEMENTS SET FORTH IN THIS INSTRUMENT ARE TRUE AND CORRECT, EXCEPT AS TO MATTERS HEREIN STATED TO BE ON INFORMATION AND BELIEF AND AS TO SUCH MATTERS THE UNDERSIGNED CERTIFIES AS AFORESAID THAT THE UNDERSIGNED VERILY BELIEVES THE SAME TO BE TRUE.

Signature of Petitioner

Petitioner's Attorney or

Petitioner if not represented by an attorney

Name: _____

Telephone Number _____

Address _____

City/State/Zip _____

DEFINITION OF TERMS USED IN THIS PETITION

1. **Civil No Contact Order:** an emergency order or plenary order granted under this Act, which includes a remedy authorized by (740 ILCS 22/213) of this Act.
2. **Family or Household Members:** include spouses, parents, children, stepchildren, and persons who share a common dwelling.
3. **Non-consensual:** a lack of freely given agreement.
4. **Petitioner:** may mean not only any named petitioner for the civil no contact order and any named victim of non-consensual sexual conduct or non-consensual sexual penetration on whose behalf the petition is brought, but also any other person sought to be protected by this Act.
5. **Protected Persons:** The following persons are protected by this Act:
 - (a) any victim of non-consensual sexual conduct or non-consensual sexual penetration on whose behalf the petition is brought;
 - (b) any family or household member of the named victim; and
 - (c) any employee of or volunteer at a rape crisis center that is providing services to the petitioner or the petitioner's family or household member.
6. **Respondent:** may mean not only the person alleged to have committed an act of non-consensual sexual conduct or non-consensual sexual penetration against the petitioner, but also any other named person alleged to have aided and abetted such an act of non-consensual sexual conduct or non-consensual sexual penetration.
7. **Sexual Conduct:** any intentional or knowing touching or fondling by the Petitioner or the Respondent, either directly or through clothing, of the sex organs, anus, or breast of the Petitioner or the Respondent, or any part of the body of a child under 13 years of age, or any transfer or transmission of semen by the respondent upon any part of the clothed or unclothed body of the petitioner, for the purpose of sexual gratification or arousal of the Petitioner or the Respondent.
8. **Sexual Penetration:** any contact, however slight, between the sex organ or anus of one person by an object, the sex organ, mouth or anus of another person, or any intrusion, however slight, of any part of the body of one person or of any animal or object into the sex organ or anus of another person, including but not limited to cunnilingus, fellatio or anal penetration. Evidence of emission of semen is not required to prove sexual penetration.
9. **Stay Away:** to refrain from both physical presence and nonphysical contact with the Petitioner directly, indirectly, or through third parties who may or may not know of the order. "Nonphysical contact" includes, but is not limited to, telephone calls, mail, e-mail, fax, and written notes.